

LW6116E: JUDGMENT-WRITING: PRINCIPLES AND PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Judgment-writing: Principles and Practice

Subject Code

LW - Law

Course Number

6116E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Two weeks

Credit Units

1.5

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Additional Information

Nil

Part II Course Details**Abstract**

This course aims to:

- provide students opportunities to study, on an intensive basis, an existing or emerging area of law so as to meet the challenges of working in a global environment;
- allow students to get exposed to leading foreign legal scholars who might be willing to spend few weeks at our Law School to offer a course;
- offer more flexibility to students to plan and complete their studies; and.
- develop further the research and analytical abilities of students.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if DEC-A1 DEC-A2 DEC-A3 app.)			
1	Describe and explain the basic concepts and principles related to the given seminar			x	
2	Apply the concepts and principles to solve hypothetical or real situations			x	x
3	Communicate ideas, arguments or advice clearly and coherently both orally and in writing		x	x	x
4	Critically analyse and evaluate concepts, principles and policy underpinning the area of law covered by the seminar		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures or interactive seminars	Students will acquire basic knowledge of the relevant concept and principles, including by asking or responding to questions	1	

2	Lectures or interactive seminars	Students will develop critical analytical abilities by observing and participating in discussions; Guided reflective pre/post-class reading	4	
3	Group discussions/ exercises	Student will get an opportunity to apply law or legal principles to practical situations; Tutorials – students will apply their understanding of legal concepts and principles to solve hypothetical situation	2	
4	Tutorials	Oral presentations and written submissions; Consultations	3	

Additional Information for LTAs

A range of LTAs are likely to be employed to achieve CILOs prescribed for a seminar. The combination and duration of the LTAs will be determined as per the needs of a particular seminar, which might in a given case be taught - wholly or in part - through video-conferencing facilities. Nevertheless, below is an indicative list of LTAs.

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Attendance and participation in tutorials and other exercises	1, 2, 3, 4	100	-	No

Continuous Assessment (%)

100

Minimum Continuous Assessment Passing Requirement (%)

40

Additional Information for ATs

Students are required to attend 100% of the classes (lectures, seminars, presentations). If a student does not meet this requirement, he/she may be disqualified for assessment.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students' achievements will be graded on the basis of their performance in assessment tasks/activities. To pass this course, student must obtain an aggregate mark of 40% and a minimum of 40% in each of the specified assessment tasks/activities.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students' achievements will be graded on the basis of their performance in assessment tasks/activities. To pass this course, student must obtain an aggregate mark of 50% and a minimum of 50% in each of the specified assessment tasks/activities.

Assessment Rubrics (AR)

Additional Information for AR

Assessment Rubrics not applicable. The course is graded on a pass-fail basis.

Part III Other Information**Keyword Syllabus****Detailed Syllabus:**

1. There will be six interactive seminars which will include the following topics:

Introduction

- Core concepts for the common law judge
- The progress of a civil case
- The process of a civil trial
- Introduction to the example cases

Types of Judicial Decision for the Civil Judge

- Finding facts and assessing witnesses
- Establishing the law and using precedent
- Exercising discretions
- Case management and interim decisions
- Interim decisions in example cases 1 and 2

The Role of the Judge at a Civil Trial

- The Judicial Role at trial
- The Judgment
- Guidance for preparing a judgment for example case 1

Judicial Review and Appeals

- Judicial review (the jurisdiction and procedure)
- Appeals (the jurisdiction and procedure)
- Writing the appeal judgment
- Appeal decisions in example cases 1 and 2

The Criminal Judge

- Overview of criminal procedure
- Judges and Jurors
- The process of a criminal trial in the crown court
- Rulings pre- and during trial
- Example rulings for example case 3
- The summing up
- Guidance for preparing a summing up for example case 3

The Delivery of Judgment/Summing up

- Students to deliver judgment in case example 1 and summing up in case example 3
- Feedback and discussion

2. Part of each seminar will be in lecture/presentation form with reference to work examples. Students will be asked to give oral or written examples of the points made followed by general discussion. In the last seminar students will be asked to give a short judgment or part of judgment, in their own words. ;

3. There are no assessments or examination and limited preparatory work for each seminar. The main work is in the seminars themselves. ;

4. Students will be assessed on a pass/fail basis.

Reading List**Compulsory Readings**

Title	
1	Nil

Additional Readings

Title	
1	Nil